भारत सरकार/ Government of India

वित्त मंत्रालय / Ministry of Finance

कार्यालय/ Office of

प्रधान आयुक्त सीमाशुल्क

Pr. Commissioner of Customs

CSM International Airport

Mumbai – 400 099

सत्यमेव जयते

BHARAT SARKAR

INDIAN CUSTOMS

F.No - I/(22)/OTH/3016/2023-ADMN **Date: 26-10-2023**

STANDING ORDER NO. 02/2023

Sub: Standard Operating Procedure for use of Body Worn Camera by Mumbai Airport Customs Baggage Clearance Officers for Customs Law enforcement functions and to promote transparency and accountability -reg.

INTRODUCTION

The officers of Chhatrapati Shivaji Maharaj International Airport, Mumbai Customs posted for passenger's baggage clearance functions are responsible for enforcement of statutory sections 77 to 80 of the Customs Act 1962 read with Baggage rules 2016 (as amended) along with the allied Acts. Mumbai Airport Customs follows the recommendations of the Customs Co-operation Council in establishing a dual channel, Green and Red channel and allows the passenger to choose any one based on the value of goods they have brought into India that is allowed duty free and based on whether or not they are carrying any restricted/prohibited goods.

The Border Customs around the world have started using digital technologies for audio and video recording for law enforcement functions and for transparency and accountability. To be in line with the best international practices, it has been decided to prescribe Body Worn Cameras (BWC) for the baggage clearance officers posted at the Red channel which is the channel meant for passengers submitting their Baggage declaration of dutiable goods brought into the country by them, for clearance by Customs.

STATEMENT OF PURPOSE

The purpose of this Standard Operating Procedure (SOP) is to provide officers with guidance for the proper use of department issued Body Worn Cameras (BWC) to accurately record scanning & examination of baggage procedures thereby enhancing transparency and accountability in Customs functions. The use of Body Worn Cameras can potentially result in a reduction of complaints against officer and the Department and also provide a valuable repository of scanning and examination procedures. This SOP also establishes guidelines for management, storage, release, and retrieval of BWC video.

PROCEDURE

In this regard the following procedure shall be followed as detailed below:

i. All officers shall wear the BWC in such a manner that those watching the footage see the visuals from the officer's perspective.
ii. The BWC shall be under the charge of the PCG in charge DC/AC and a register shall be maintained in which the officers shall sign and record the time and date of wearing the BWC and also the time of removing the BWC in presence of DC/AC who shall counter sign the entries made. The DC/AC at the end of the shift shall hand over the

equipment to the next DC/AC posted in PCG and record the time of handing over and shall sign in the register.

iii. Department issued BWCs shall be for official Departmental use only and shall not be used for non-work related or personal activities. The BWC shall be handed over to DC/AC of the concerned batch as and when the officer is required to go to the washroom or during lunch/dinner.

iv. As and when a passenger comes to the Red channel counter or is diverted to the counter in Red channel, the officer shall start recording the examination proceedings of the baggage in the presence of the passenger and stop the recording only after the DC/AC Batch on duty allows him/her to do so.

v. At the end of the officer's shift the officer shall transfer all the recorded data into the system available with the DC/AC of PCG that shall be stored in encrypted format with password and OTP and intimation to ADC/PCG and Commissioner (Airport) with date and time of recording. It shall be ensured that no data is kept in BWC and the next shift DC/AC has to ensure that there is no earlier data in the BWC before handing over to the nominated officer wearing the BWC.

vi. The encrypted data shall be transferred every 24 hours to a secure server that shall be placed in vigilance section and another backup will be stored in HDD which will be in the custody of AC/DC vigilance section. Meanwhile the data shall be erased from both the BWC and system of DC/AC-PCG.

vii. In order to safeguard Privacy issues, Additional Commissioner (Airport) and one nominated senior officer shall only review the recordings and shall be nominated as Admin for the encrypted data.

This standing Order shall come into force immediately and earlier Standing Order No. 01/2023 dated 18.09.2023 stands rescinded. Any difficulty faced in operation of the SOP along with periodic reviews of these instructions shall be brought to the notice of the undersigned, along with recommendation, if any for amendment in SOP.

This issues with the approval of the Competent authority.

Signed by Nancy Oliver Dsouza
Date: 26-10-2023 15:55:17
Reason: Approved

(NANCY D'SOUZA)
Additional Commissioner of Customs,
CSMI Airport, Mumbai